



RE: CLAIM FOR A REFUND FOR FAULTY POWER BANK

To Whom It May Concern,

Date: June 21, 2025

This letter sets out my legal right to a full refund for a power bank purchased from iMobile Pty Ltd on June 11, 2025. My claim is made under the *Consumer Rights Act 2015*.

I. STATEMENT OF FACTS

On Wednesday, June 11, 2025, I purchased a Power Bank from your store, iMobile Pty Ltd. The item was discovered to be non-functional the following day, June 12, 2025. On that same day, I returned to the store to request a refund, which was refused by the store owner, citing company policy.

II. LEGAL BASIS FOR CLAIM

My claim is founded on the *Consumer Rights Act 2015*, which governs contracts for the sale of goods between a trader and a consumer.

A. Application of the Consumer Rights Act 2015

Section 1(1): This Act applies to the contract between myself and iMobile Pty Ltd as it concerns the supply of goods from a trader to a consumer.

Section 2(3) and 2(2): I am a 'consumer' as defined by the Act, having purchased the adapter for personal use. iMobile Pty Ltd is a 'trader' as it sold the item in the course of its business.

Section 2(8): The Power Bank is considered 'goods' under the Act, as it is a tangible, moveable item.

B. Breach of Statutory Rights

The contract of sale included an implied term that the goods would be of satisfactory quality.

Section 9(1): This section implies a term that goods supplied must be of "satisfactory quality."

Sections 9(2) and 9(3): Satisfactory quality includes, among other things, fitness for all common purposes and freedom from minor defects. The Power Bank, being completely nonfunctional, is not fit for its purpose and is clearly not free from defects. Therefore, it is not of satisfactory quality, and the contract has been breached.

C. Entitlement to a Remedy

As a result of this breach, I am legally entitled to a full refund.

Section 19(3): The Act grants a consumer the ‘short-term right to reject’ goods that do not conform to the contract, as is the case with the faulty adapter.



Section 22(3): This right to reject must be exercised within 30 days of the receipt of the goods. I attempted to exercise this right on June 12, 2025, the day after the purchase, which is well within the statutory timeframe.

Section 20(1) and 20(5): The right to reject is exercised by indicating this rejection to the trader, which I did in person at your store.

III. REMEDY SOUGHT

Upon the exercise of the short-term right to reject, the law is unequivocal about the remedy.

Section 20(7)(a): Upon rejection, the trader has a duty to provide a refund.

Section 20(10): The refund must be for the full amount of money paid.

Section 20(15): This refund must be processed without undue delay and, in any event, within 14 days of the trader agreeing that the consumer is entitled to it.

IV. CONCLUSION

Based on the foregoing, I am legally entitled to a full refund for the faulty Power Bank. The refusal to provide this refund is a direct contravention of the *Consumer Rights Act 2015*. I expect a full refund of the purchase price without further delay.